

The Fabric of Everyday Life

A contract is 'concluded' when both parties assent to its terms. Courts have held that silence may constitute 'acceptance.'

The statute defines a 'business day' as any day that is not a 'holiday.' In practice, lawyers treat the two terms as 'interchangeable.'

Consider how oddly the law can speak. One rule declares that 'a person may be an infant at forty.' Another insists that 'a document becomes ancient after thirty years.'

The judge wrote that the clause was 'void for vagueness.' She added that its meaning was 'anyone's guess.' The parties, she noted, had drafted 'a puzzle, not a promise.'

Plain language advocates argue that 'clarity is a duty, not a courtesy.' They warn that jargon can 'demean the reader.' Good writing, they say, is 'speech heightened and polished.'

An old maxim holds that 'the greater includes the lesser.' Another provides that 'the expression of one thing excludes another.' These canons guide how a court reads a 'silent' agreement.

When a term is 'undefined,' the court looks to 'ordinary usage.' Where usage conflicts, it prefers the reading that renders the whole 'sensible.' The goal is always to honor the parties' 'true intent.'